

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MYESHA GONZALES-WILLIAMS,

Petitioner

VS.

JOSEPH COLE,

Respondent

) Case Number: FPT-25-378730

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO SET ASIDE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Myesha Gonzales-Williams and Respondent Joesph Cole.
- 2) On 7/15/26, Respondent filed a Request for Order seeking to set aside default entered on 4/9/26 pursuant to Code of Civil Procedure section 473(b).
- 3) There is no Proof of Service on file indicating Petitioner was served with Respondent's 7/15/26 Request for Order.
- 4) Petitioner did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds Respondent's 7/15/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued 10/22/26 at 9 AM in Dept. 403** for lack of service.
- 3) At least 16 Court days prior to the next hearing date, Respondent shall file and serve on Petitioner the (a) 7/15/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a

1 person over the age of 18 shall mail to Petitioner the (a) Request for Order, (b) Continuance
2 Order, and (c) Tentative Ruling Instructions, and then Respondent shall file form FL-335 (Proof
3 of Service) with the Court confirming service was effectuated).

4 4) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
5 Declaration.

6 5) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
7 Declaration.

8 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELLA PEREZ,

Petitioner

VS.

JOHN CHARLES DIXON,

Respondent

) Case Number: FPT-26-378818

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties to the proceeding are Petitioner Daniella Perez (Mother) and Respondent John Charles Dixon (Father). They share one minor child: John Charles Dixon Jr. (DOB: 09/24/15).
- 2) On May 13, 2026, Mother filed a Request for Order seeking child custody and visitation orders. In particular, Mother is seeking orders for sole legal and sole physical custody and professionally supervised visitation for Father.
- 3) On May 27, 2026, Father filed a Responsive Declaration in which he asks for joint legal custody and sole physical custody to Mother. In addition, he asks that his parenting time be every second and fourth weekend from Friday after school until Sunday at 5:00 p.m. He is also requesting the implementation of a Holiday schedule.
- 4) On June 15, 2026, both parties appeared at the "Readiness" hearing and the parties were referred to FCS Mediation to occur on July 30, 2026 and set a return hearing for August 18, 2026.
- 5) On July 15, 2026, Father filed a supplemental declaration, which has been read and considered by the Court.

6) On July 16, 2026, Father filed another supplemental declaration, which contained an attached exhibit.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Mother shall have sole legal and sole physical custody of the minor child.

3) Father shall have parenting time with the minor child every other weekend, commencing August 22, 2026. Father's parenting time shall be as follows:

a. Saturdays – 10:00 a.m. – 4:00 p.m.

b. Sundays – 10:00 a.m. – 4:00 p.m.

4) In addition, Father may have parenting time with the minor child every Wednesday from after school until 7:00 p.m.

5) The Court has concerns about allegations of Father's alcohol abuse/addiction. The Court would urge Father to obtain help for his problem with alcohol. Should Father desire to change the custody and visitation orders, the Court will consider any and all steps Father has taken in this regard. If Father chooses to do nothing, then the Court probably will not entertain any request he may have for additional time.

6) The Court will set a review hearing on November 24, 2026, to review child custody and visitation.

7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOAI BAO THUC NGUYEN,

Petitioner

VS.

TRUONG XUAN THI PHAM,

Respondent

) Case Number: FDI-15-784944

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Hoai Bao Thuc Nguyen (Husband) and Truong Xuan Thi Pham (Wife).
- 2) On December 15, 2015, Husband filed a Petition for Dissolution of Marriage, alleging a long-term marriage from February 24, 1981 – July of 2004 for a total duration of 23 years and 4 months.
- 3) On August 31, 2016, Wife filed a Response and Request for Dissolution of Marriage wherein she agreed with the total duration of marriage as stated in the underlying petition.
- 4) On September 9, 2017, the Court issued a pendente lite spousal support order in the amount of \$8,000 per month, payable by Husband to Wife based upon their agreement. This order was effective the filing date of Wife's Request for Order (i.e., June 22, 2017). See Findings and Order After Hearing filed October 17, 2017.
- 5) On October 17, 2017, the Court entered a Status Only Judgment terminating the parties' marital status.

- 6) On July 10, 2023, Wife filed an Ex Parte Application to Issue an Earnings Assignment Order, alleging Husband owed \$87,900.00 in arrears (not including interest) from the pendente lite spousal support order of \$8,000 per month payable to Wife by Husband.
- 7) On January 23, 2026, Husband filed a Request for Order seeking modification of spousal support to \$0 per month, citing retirement from employment at Kirkland & Ellis LLP effective February 1, 2026. The matter was set for hearing on April 7, 2026. Husband attached a letter from Kirkland & Ellis LLP indicating that he will be paid through the end of the fiscal year 2026.
- 8) On February 2, 2026, Husband filed a Proof of Service indicating his Request for Order was served on Respondent by personal service on January 29, 2026.
- 9) On April 7, 2026, the Court continued the matter to June 2, 2026, as the Court did not have enough evidence to modify support because Husband failed to file the required Income and Expense Declaration along with his request. Husband was ordered to file and serve an Income and Expense Declaration at least 9 days prior to the next hearing.
- 10) On May 27, 2026, Wife filed a Responsive Declaration requesting the Court maintain the existing order pending evidentiary hearing or, in the alternative, an order for the full amount of arrears to be paid. Wife asserts Husband owes a total of \$192,162 in unpaid spousal support and interest as of May 20, 2026.
- 11) On May 27, 2026, Wife filed Declaration of William Essig, CPA Re: Spousal Support Arrearage and Interest Thereon Owed from Petitioner to Respondent. The declaration states that Husband owes Wife \$135,900 in unpaid spousal support and \$50,626.68 in legal interest.
- 12) On May 27, 2026, Wife filed Declaration of David A. Gonzalez, wherein Wife requests an evidentiary hearing for the Court to conduct a Family Code section 4320 analysis.
- 13) On May 27, 2026, Husband filed a Reply Declaration. Husband states it is undisputed that his partner-level employment ended January 31, 2026, and he now works at a boutique law firm but has not received any income.
- 14) On June 2, 2026, the Court continued the matter to July 14, 2026, and ordered both parties to submit updated Income and Expense Declarations at least 10 days prior to the hearing.
- 15) On July 6, 2026, Husband filed an updated Income and Expense Declaration.
- 16) On July 6, 2026, Wife filed an updated Income and Expense Declaration.

1 17) At the prior July 14, 2026 hearing, Husband advised the Court that his Income and Expense
2 Declaration was attached to his original Request for Order, which the Court confirmed. The Court
3 admonished Husband for failing to notify Wife of his intent to appear at the hearing and
4 continued the matter to August 18, 2026.

5 18) Neither party submitted additional pleadings.

6 **B. Findings and Order**

7 1) Wife's request for a total of \$192,162 in unpaid spousal support (\$135,900) and interest
8 (\$50,626.68) as of May 20, 2026 is GRANTED. Husband shall pay Wife this balance in full by
9 September 18, 2026.

10 2) The Court is inclined to grant Husband's request for modification of temporary spousal support
11 due to unemployment effective August 1, 2026 (because July 31, 2026 is the end of fiscal year
12 2026, which is the date on which Kirkland & Ellis LLP stopped paying Husband); however, the
13 Court does not have sufficient information to calculate the modification of temporary spousal
14 support.

15 3) As such, **the parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS, PROPERTY CONTROL, REMOVE THE PETITIONER
FROM THE APARTMENT, CHARACTERIZE COMM

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 7/9/26, Respondent filed an ex parte Request for Order seeking enforcement of spousal support, exclusive use and control of the community leasehold and related relief, and attorney's fees and costs.
- 3) On 7/9/26, the Court denied Respondent's request for emergency relief and set the matter for hearing on 8/18/26. The Court ordered Respondent to personally serve Petitioner with all documents filed with the Request for Order (see FL-300).
- 4) There is no Proof of Service on file indicating Petitioner was personally served with Respondent's 7/9/25 Request for Order.
- 5) Petitioner did not file a Responsive Declaration.

B. Findings and Order

- 1) This matter is **continued to 10/22/26 at 9:00 AM in Dept. 403** to permit Respondent to effectuate proper service.
- 2) At least 16 Court days prior to the next hearing date, Respondent shall serve on Petitioner the (a) Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive Declaration.
- 4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply Declaration.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL JOHN NAPOLITANA,

Petitioner

VS.

LEEANN JEANETTE BAILEY,

Respondent

) Case Number: FDI-18-790530

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY CHANGE OF CHILD CUSTODY, LEGAL CUSTODY RE EDUCATION OF KYLE,
CLARIFICATION OF ALLOCATION OF COSTS; REQUEST FOR ORDER FOR CHANGE OF
REQUEST FOR ORDER REGARDING CHANGE OF VISITATION, ENFORCEMENT OF
MARITAL SETTLEMENT AGREEMENT AND AUGUST 5, 2021 FOAH, AND 271 SANCTIONS
CHANGE OF VISITATION (PARENTING TIME), REQUEST FOR ENFORCEMENT OF MSA AND
8/5/21 FOAH; SEE SECTION 7; AND FC 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michael Napolitana (Father) and Respondent Lee Ann Bailey (Mother).
They share one minor child: Kyle Napolitana (DOB: 08/16/11).
- 2) On April 28, 2026, Father filed a Request for Order seeking a modification of child custody; legal
custody re: Education of Kyle; and clarification of allocation of costs. Father requests:
 - a. Termination of the minor child's enrollment and attendance at Sacred Heart; and
 - b. Sole legal custody regarding education.
- 3) On April 28, 2026, Father filed a Memorandum of Points and Authorities.

- 1 4) On April 30, 2026, Mother filed a Request for Order in which he seeks the following orders:
- 2 a. Modification of Visitation;
- 3 i. Kyle to be in Mother's care all school days and for weekends/holidays to be
- 4 shared.
- 5 ii. Rescind travel order.
- 6 iii. Court order to speak with minor child who has expressed a desire to speak to the
- 7 Court.
- 8 b. Request for Enforcement of MSA and 08/05/21 FOAH;
- 9 i. Reimbursement of 50% of \$1600 (enrollment deposit).
- 10 ii. Order Father to pay his share of the child's tuition.
- 11 c. 271 Sanctions (\$2000) for what this request is based upon is unclear to the Court.
- 12 d. 271 Sanctions (\$5000) for "Mike's intentional violation of the Travel Order in August of
- 13 2025.
- 14 e. Prevailing Party Attorney Fees (pursuant to Judgment terms) in the amount of \$8,290.
- 15 5) On April 30, 2026, Mother filed a "Declaration of Counsel."
- 16 6) On June 1, 2026, Mother filed a Responsive Declaration to Father's April 28, 2026, RFO.
- 17 7) On June 1, 2026, Counsel for Mother filed a declaration in support of request for attorney fees
- 18 and costs, which has been read and considered by this Court. Mother is asking this court to order
- 19 Father to pay \$6,905.00 in FC 271 sanctions.
- 20 8) On June 3, 2026, Father filed a Responsive Declaration to Mother's April 30, 2026, RFO. The
- 21 Court notes that Father has requested attorney fees and costs, but does not provide a statutory
- 22 basis, nor does he submit an amount (via attorney declaration) that he is seeking.
- 23 9) On June 3, 2026, Father filed a Request for Judicial Notice of his RFO filed April 28, 2026
- 24 (Court notes it does not need to take judicial notice of this RFO, as it has been fully read and
- 25 considered and is part of the court's review.)
- 26 10) On June 3, 2026, Father filed a Memorandum of Points and Authorities in support of his
- 27 Responsive Declaration.
- 28 11) On June 8, 2026, Mother filed a Reply to Father's Responsive Declaration.
- 29 12) On June 8, 2026, Father filed a Reply to Mother's Responsive Declaration.

1 13) On June 9, 2026, Father filed “Petitioner and Responding Party Michael Napolitana Objection to
2 Respondent Leeann Bailey’s Request for Attorney Fees & Costs Pursuant to Fam. Code 271” in
3 which he enters two formal objections.

4 14) On June 11, 2026, Mother filed an “Objection and Request to Strike Portions of 1) Petitioner and
5 Responding Party Michael Napolitana’s Objection to Respondent Leeann Bailey’s Request for
6 Attorney Fees and Cost and Sanctions Pursuant to Family Code section 271, and 2) Reply of
7 Petitioner Michael Napolitana to Respondent Leeann Bailey’s Responsive Declaration. (Four
8 objections are OVERRULED)

9 15) On June 15, 2026, the Court conducted a Readiness hearing. At Readiness, the Court referred the
10 parties to FCS Mediation to occur on August 11, 2026 and set a return hearing to occur on August
11 18, 2026.

12 16) On August 11, 2026, the parties attended FCS and did not reach any agreement.

13 17) On August 11, 2026, Mother filed a “Supplemental Declaration of Respondent Leeann Bailey in
14 Support of Her Request for Enforcement of MSA and 08/05/21 FOAH; FC 271 Sanctions; and
15 Custody Timeshare Modification.”

16 18) On August 11, 2026, Mother filed an “Updated Declaration of Farimah Erlandson, Esq., In
17 Support of Respondent’s Request for Attorney Fees and Costs Pursuant to Family Code section
18 271” in which her request for 271 sanctions has been updated to a total of \$14,365.00.

19 **B. Findings and Order**

20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
21 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
22 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 child(ren) is the United States.

24 2) As a preliminary matter, the Court rules on the parties’ evidentiary objections as follows:

25 a. Father’s Objections filed June 9, 2026: both objections are OVERRULED; and

26 b. Mother’s Objections filed June 11, 2026: all four objections are OVERRULED.

27 3) Father’s request for a modification of the existing child custody order is DENIED.

28 4) Father’s request for an order terminating the minor child’s enrollment at Sacred Heart is
29 DENIED.

- 1 5) Father's request for attorney fees and costs is DENIED. Father neither provided this Court with a
2 statutory basis for his request nor any evidence regarding the amount of fees requested.
- 3 6) Father's request for a clarification of the tuition payment order is GRANTED. Given that Mother
4 has sole legal custody, if Mother chooses to place the minor child in private school, then she is
5 responsible for 100% of tuition and expenses.
- 6 7) As such, Mother's request that Father pay 50% of Kyle's tuition expenses is DENIED. Mother is
7 responsible for 100% of Kyle's tuition and expenses associated with his attendance at Sacred
8 Heart.
- 9 8) Mother's request for a change in the parenting schedule is DENIED.
- 10 9) Mother's request that the Court speak to the minor child is DENIED, as the Court is not making
11 any modification to Mother's school selection and has denied Father's request for a modification
12 of Mother's sole legal custody.
- 13 10) Mother's Request for Enforcement of MSA and 08/05/21 FOAH is DENIED. As so aptly stated
14 by Father, Mother has essentially asked this Court to order Father to comply with the MSA
15 regarding payment of tuition, when she came to Court (several years ago) and asked the Court to
16 allow her to avoid compliance with the particular provision she is now asking this Court to
17 enforce. The Court finds Mother's requests to be disingenuous and inconsistent with Judge
18 Evangelista's prior orders granting Mother the relief she previously sought.
- 19 11) Mother's request for 271 sanctions is DENIED. The Court finds that Mother's conduct caused
20 this dispute. Had Father stated an amount of 271 sanctions he was requesting, the Court would
21 have granted Father 271 sanctions against Mother.
- 22 12) Mother request for "prevailing party" attorney fees is DENIED. Mother is not the prevailing
23 party.
- 24 13) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 25 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
26 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
27 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
28 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
29 proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRIAM GAYLE KANE,

Petitioner

VS.

DAVID WILLIAM KANE,

Respondent

) Case Number: FDI-23-798208

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; JUDGMENT ENFORCEMENT;
SANCTIONS; CASE MANAGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miriam Gayle Kane and Respondent David William Kane.
- 2) On 5/1/26, Petitioner filed a Request for Order seeking: (a) enforcement of terms of the parties' 11/6/25 Judgment; (b) \$5,000 in Family Code section 271 sanctions; (c) \$73,488 in attorney's fees and costs for fees currently owed and anticipated fees (including expert fees); and (d) a trial setting date.
- 3) On 5/7/26, Petitioner filed a Proof of Service indicating service of Petitioner's Request for Order and supportive documents was effectuated by electronic service on Respondent's counsel on 5/7/26.
- 4) On 6/2/26, Petitioner filed an Income and Expense Declaration.
- 5) On 6/2/26, Petitioner filed a Proof of Service indicating service of Petitioner's Income and Expense Declaration was effectuated by electronic service on Respondent's counsel on 6/2/26.

- 6) On 6/22/26, Petitioner filed an Update Declaration augmenting the Family section 2030 attorney's fees request from \$73,488 to \$86,827 with attached attorney billing statements.
- 7) Respondent did not file a Responsive Declaration.
- 8) At the prior 6/25/26 hearing, counsel for Respondent requested a short continuance. The Court granted the continuance and ordered Respondent to file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26, with Petitioner to file Reply Declaration by 7/6/26. The matter was continued to 7/9/26.
- 9) Respondent did not file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26.
- 10) On 7/6/26, Petitioner filed a declaration entitled Second Update Declaration of Attorney for Petitioner in Support of Request for Attorney's Fees wherein Petitioner states that Respondent failed to comply with the briefing instructions ordered at the prior hearing and requesting and additional \$5,000 in Family Code section 271 sanctions, for a total of \$10,000 in sanctions.
- 11) At the prior 7/9/26 hearing, the Court continued the matter to 8/18/26 due to counsel for Respondent's medical emergency.
- 12) No additional pleadings were filed.

B. Findings and Order

- 1) Petitioner's unopposed request for enforcement of terms of the parties' 11/6/25 Judgment is GRANTED. Based on the terms of the 11/6/25 Judgment, the Court finds good cause to issue the following orders:
- 2) Regarding the Auburn Street property (located at 35 Auburn Street, San Francisco), the Court finds that Respondent failed to provide timely proof of any Family Code section 2640 reimbursement claims pursuant to section 2(a)(i) of the Judgment; therefore, no Family Code section 2640 reimbursement claim related to the Auburn Street property will be credited absent further order of the Court.
- 3) The Court confirms that the agreed value of the Auburn Street property for purposes of a buyout is \$1,550,000. See section 2(a)(ii) of the Judgment.

- 1 4) By 8/25/26, Respondent shall notify Petitioner in writing whether he intends to proceed with a
2 buyout of Petitioner's community property interest in Auburn Street property based on the agreed
3 \$1,550,000 value.
- 4 5) If Respondent elects to proceed with the buyout, Respondent shall complete the buyout by
5 9/25/26, unless the parties agree otherwise in writing.
- 6 6) The Court reserves jurisdiction over the disposition of the Auburn Street property and any related
7 issues.
- 8 7) If Respondent does not timely elect to proceed with or complete the buyout, Petitioner may file a
9 new Request for Order seeking to compel the sale of the Auburn Street property.
- 10 8) Regarding retirement accounts, the parties agreed to jointly retain Moon Schwartz and Madden
11 (MSM) to characterize and equalize all retirement accounts. See section 2(b)(i) of the Judgment.
- 12 9) Respondent shall supply all preliminary information and documents requested by MSM by
13 9/2/26. Respondent shall pay his 50% share of MSM's estimated cost and supply any additional
14 information and documents requested by MSM within 7 days of MSM's request.
- 15 10) The Court reserves jurisdiction to issue additional orders to ensure completion of the equalization
16 or retirements accounts and to impose sanctions in the event Respondent fails to comply.
- 17 11) Regarding retrieval of personal property, the parties shall coordinate a date certain for the transfer
18 of Petitioner's personal property consistent with the Judgment. The parties shall meet and confer
19 regarding and deadline and delivery of the items as the terms of the Judgment require Respondent
20 to deliver the items to a storage site in either San Francisco or San Mateo. See section 3(a). The
21 parties are encouraged to work cooperatively together to make the transfer of property as
22 seamless for both sides as possible.
- 23 12) Petitioner's request for \$86,827 in Family Code section 2030 attorney's fees is DENIED.
- 24 13) Petitioner's request for Family Code section 271 sanctions is GRANTED in the amount of \$5,000
25 as the Court finds Respondent's conduct caused unnecessary delay.
- 26 14) Either party may file an At Issue Memorandum to request a Status Conference at which time a
27 trial date can be requested if it is determined that the parties are ready for trial on the remaining
28 issues.
- 29 15) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

1 16) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROSEANNE BULAONG,

Petitioner

VS.

STEVEN BASTUBA,

Respondent

) Case Number: FDI-24-800746

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATION AND SEPARATE TRIAL (STATUS-ONLY OF
DOMESTIC PARTNERSHIP)

TENTATIVE RULING

Respondent's request for bifurcation of trial and termination of domestic partnership status (filed 3/20/26) is MOOT as Status Only Judgment was entered on 7/8/26. As such, **the 8/18/26 hearing is VACATED.** No appearances are required on 8/18/26.

The Court acknowledges that Respondent filed a declaration on 7/29/26 indicating the remaining issues left to resolve the parties' case (allocation of dependent tax benefits and division of retirement assets). To advance in the dissolution process, either party may file an At Issue Memorandum to request a Status Conference at which time a Mandatory Settlement Conference will be scheduled, and a trial date can be requested if it is determined that the parties are ready for trial. The Court encourages the parties to continue to focus their efforts on reaching a full resolution.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANGELICA FIERRO,

Petitioner

VS.

WILLIAM THOMAS WHITEBONE,

Respondent

) Case Number: FDV-19-814812

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On August 16, 2019, Petitioner Mother filed an application for a domestic violence restraining order against Respondent Father. Father opposed the application and on August 12, 2020, a permanent restraining Order was entered against Father, with a termination date of August 6, 2025.
- 2) A paternity judgment was entered on June 24, 2020, concerning the minor child, Cecil B. Whitebone (DOB: 05/05/2013). The parties were awarded joint legal and physical custody.
- 3) On September 25, 2025, Father filed an application for a domestic violence restraining order against Mother. The Court entered a Temporary Restraining Order on September 25, 2025. On November 26, 2025, the Court denied Father's request but entered an Order awarding parenting time to Father from Friday pick up after school to Monday drop off school; alternating every other week commencing 12/5/25; if no school, pick up exchange is at Fillmore police station at 10 am; if no school, Monday drop off at police station at 8 am; starting Saturday 11/29/25 and alternating every Saturday Father to have Cecil from 10-4 pm.

- 1 4) On April 29, 2026, Father filed a Request for Order seeking to modify child custody and
2 visitation and requested joint legal and joint physical custody every weekend from Friday after
3 school until Monday before school. Father alleges Mother interferes with the parenting schedule,
4 keeping Cecil home on his Friday pick up date. Father further alleges Cecil is truant from school
5 and Father wants access to school records.
- 6 5) On June 5, 2026, Mother filed a declaration, which was wholly inadequate. Rather than respond
7 to Father's allegations, Mother attached undated (and perhaps stale) text messages, a photo of
8 herself and outdated information which she previously provided to the Court in prior proceedings.
9 Mother fails to establish by admissible evidence her allegations against Father.
- 10 6) Both parties appeared for mediation on July 9, 2026, but it does not appear that any agreement
11 was reached.
- 12 7) On July 23, 2026, the parties appeared before Visiting Judge Frangie and the Court issued the
13 following orders:
- 14 a. The Court declines to change the legal or physical custody order. Father has not rebutted
15 the presumption of Family Code section 3044, which provides that an award of sole or
16 joint physical or legal custody of a child to a person who has perpetrated domestic
17 violence is detrimental to the best interest of the child.
- 18 b. Notwithstanding the above, Father is entitled to access Cecil's medical and school
19 records and the Court orders this access. Furthermore, there is no order prohibiting Father
20 from going to Cecil's school or attending events there.
- 21 c. The Court finds that neither party has been civil to the other with respect to the best
22 interests of their child. The Court admonishes the parties not to disparage each other and
23 behave civilly moving forward.
- 24 d. The Court orders the parties to attend and complete a co-parenting class and enroll in
25 such and provide proof of completion to the Court within thirty days.
- 26 e. The parties are ordered to communicate with each other via the OurFamilyWizard
27 application.
- 28 f. The Court admonishes parties to encourage Cecil to attend therapy and visitation with
29 Father.

- 1 g. Mother shall provide the minor's therapist and school information to Father. Mother
2 shall call and alert the therapist that Father is permitted to communicate with the therapist
3 and ask for availability with therapist.
- 4 h. The Court finds that Mother is and has interfered with Father's time with Cecil.
- 5 i. Father shall have parenting time with Cecil from 07/23/26 – 07/27/26.
- 6 j. Father shall have makeup time with Cecil starting 08/07/26 until 08/15/26. The parties
7 shall return to the regular parenting schedule after 08/15/26.
- 8 k. The Court sets two **review hearings on 08/18/26 and 11/24/26 at 9 AM in Dept. 403.**
9 Supplemental Declarations are ordered filed and served no later than ten court days prior
10 to the hearing.

11 8) Neither party has filed, as ordered by the Court.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child(ren) is the United States.
- 17 2) Given that neither party filed a supplemental declaration, as ordered by the Court, all current
18 orders shall remain in full force and effect.
- 19 3) The Court finds good cause to vacate its prior order for further review hearings: the hearing
20 calendared on 11/24/26 is hereby vacated.
- 21 4) The Court will prepare the Findings and Order After Hearing.
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